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File No.: EXP202307623

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 11, 2023. The complaint is directed against the individual identified as B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant states that the respondent has installed six surveillance cameras in their home that are directed towards the public road, specifically the Road of (...) and access paths to their home and those of other neighboring residents, without having authorization for this.

The respondent was warned about other cameras in action PS/00452/2020.

TO IMPOSE on B.B.B. with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a WARNING sanction.

Images of the cameras subject to the complaint are provided (ANNEX I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

Consulting the database of this agency, the complaint was forwarded to the respondent's address, in accordance with the provisions of the current Administrative Procedure Law on June 6, 2023.

THIRD: On July 5, 2023, a response was received from the respondent regarding the described facts, stating the following:

"that the cameras are installed within the terms of legality and effectiveness of their purpose (...) stating that the cameras do not record any neighboring path denying the right of way... the neighbor is fully aware of my cameras because I do not hide them and they are duly signposted."

"I am about to turn 73 years old, my wife is already that age, we only ask that we be respected and left in peace (...) excuse the writing as my machine is very old."

Various photographs are attached, both of their own cameras and others that they claim belong to their neighbor, installed in a "furtive" manner (Annex I).

FOURTH: On July 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On January 8, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) and 13 of the GDPR, classified under Article 83.5 letters a) and b) of the GDPR.

SIXTH: The Agreement to Initiate dated January 8, 2024, was forwarded to the respondent in accordance with the current Law 39/2015 (LPAC), being recorded in the information system of this agency as on January 18, 2024, and received by the respondent according to the signature provided for this purpose.

SEVENTH: On January 24, 2024, a written statement of allegations was received from the respondent, which, in summary, includes the following statements:

- That the cameras are limited to their private parcel, providing a screenshot of what is observed with each camera.
- That there are various problems with the complainant, having a pending judgment regarding the ownership of the neighboring path.
- That they are available to this agency in case any new clarification or suggestion for modification of the cameras is required.

PROVEN FACTS

First. The facts arise from the complaint dated April 11, 2023, through which the following is conveyed: "installed in their home six surveillance cameras that are directed towards the public road, specifically the Road of (...) and access paths to their home and to those of other neighboring residents, without having authorization for this" (page No. 1).

Second. It is evidenced that the main responsible for the installation of the system is Mr. B.B.B., who does not deny the installation of a camera system.

Third. It is evidenced that the installed cameras, the number of which coincides with those reported, are directed exclusively to their with no observation of public space capture, nor affecting third-party properties.

LEGAL GROUNDS

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I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, we proceed to examine the complaint dated 11/04/23, through which the presence of "various image capture devices oriented towards public space and the private space of the complainant" is reported, allegedly without justified cause for doing so.

Article 5.1 c) of the GDPR provides as follows: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In the case of cameras around the perimeter, they must have an approved informative label in accordance with current regulations, which can be found in any establishment or online store, and must be filled in regarding the indication of the responsible party for the processing, purpose (security), and indication of an address where rights can be exercised.

In any case, the cameras must be oriented towards the private space, avoiding intimidating neighboring residents with such devices, as well as monitoring areas of transit without justified cause. Moreover, with such devices, images of public space cannot be obtained, as this is the exclusive competence of the State Security Forces and Corps, complying with the requirements of Organic Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

It is worth noting that even in the case of a "simulated" camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who may feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or transit of third parties,

except in the cases permitted by the regulations.

The purpose of such devices must be the security of the property and its occupants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the individual in such a way that they do not affect the areas of third parties who may feel intimidated by them, impacting their free transit area or private space.

III

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction;” Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (images of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

IV

On 24/01/24, a written response was received from the respondent, stating the following: “the complainant is not truthful in his statement as no one has protested about the cameras,” as well as various issues with him.

Documentary photographic evidence (Annex I) is provided, showing what is obtained with each of them, limited to the complainant's private parcel.

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Therefore, the capture of images is limited to personal and domestic scope, with no images obtained from the private space of third parties, nor affecting adjacent public space.

Article 4, section 3 of Instruction 1/2006 of November 8, from the Spanish Agency for Data Protection, regarding the processing of personal data for surveillance purposes through camera or video camera systems, states the following:

3. Cameras and video cameras installed in private spaces may not capture images of public spaces unless it is essential for the intended surveillance purpose, or it is impossible to avoid it due to their location. In any case, any unnecessary data processing for the intended purpose must be avoided. The mere viewing of the cameras from the adjacent plot does not constitute an infringement of privacy, beyond the fact that they are observed, with the essential aspect being what is observed with the installation monitors, which, in the opinion of this agency, are correctly oriented.

Individuals have full freedom to install the number of cameras they deem necessary for the protection of their plot and belongings, always within the legal limits outlined and avoiding orientation towards neighboring properties (even in the case of fake cameras).

It is worth noting that actions that could constitute administrative infractions or even criminal offenses may lead to the temporary reorientation of the camera(s), and the obtained images must be made available to the State Security Forces and Bodies, who can advise on the matter or to the nearest Investigating Judge to the location of the events.

The signage of the cameras is only necessary in cases where they capture where it is necessary to inform that the images (data) are subject to processing, as well as the responsible party and how to exercise rights, a matter that has been widely demonstrated to only affect their .

The presumption of innocence applies without exceptions in the sanctioning legal framework and must

be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

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Given the processing of a prior warning procedure, where the facts coincide with those analyzed in the present procedure and in relation to the informative signage that led to the initial accusation of an infringement of Article 13 of the GDPR, it is reminded that, in the case of external cameras, an approved informational sign(s) must be placed (for example, at the entrance door to the property) indicating the responsible party for the processing and the address to which inquiries should be directed (e.g., the address of the property itself).

The above is presented as guidance in case there is any new change or modification in the camera system that captures perimeter limits or proportionately external space, making it necessary to inform with informational signage indicating that it is a .

Article 22, section 4 of the LOPDGDD (LO 3/2018, December 5) states:

"The duty of information provided for in Article 12 of Regulation (EU) 2016/679 shall be understood to be fulfilled by placing an informational device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679."

In this case, since the set of installed cameras is limited to the private plot of the owner, it is not necessary to place an external sign indicating that it is a video-monitored area.

VI

In accordance with the above, having analyzed the evidence provided and the cooperation of the respondent, it is considered that the video surveillance camera system complies with current legality, confining the system to its private scope for the security of the property and its belongings, not capturing public and/or private space of third parties.

Finally, given the existence of litigation(s) between the parties, it is recommended not to instrumentalize this agency in matters of neighborhood disputes, and to redirect them to the minimum rules of neighborhood coexistence or resolve them in the appropriate judicial instances.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the gradation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of this procedure as the facts subject to transfer do not constitute an administrative infraction.

SECOND: TO NOTIFY this resolution to Mr. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested

parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1403-16012024

Mar España Martí

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